

Court No. - 2

Case :- WRIT - C No. - 277 of 2023

Petitioner :- Mohammad Wasim

Respondent :- State Of U.P. Thru. Prin. Secy. Energy Govt. Of
U.P. Civil Sectt. Lko. And Others

Counsel for Petitioner :- Ramesh Kumar Mishra, Adhyatm
Singh

Counsel for Respondent :- C.S.C., Aprajita Bansal

Hon'ble Mrs. Sangeeta Chandra, J.

Hon'ble Manish Kumar, J.

Ms. Aprajita Bansal, learned counsel for the respondent nos. 2, 3 & 4 prays for and is granted time to seek instructions from the respondents.

List this matter on 19.01.2023, as fresh.

Order Date :- 16.1.2023

Nitesh

Court No. - 4

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Counsel for Petitioner :- Ramesh Kumar Mishra, Adhyatm Singh

Counsel for Respondent :- C.S.C., Aprajita Bansal

Hon'ble Mrs. Sangeeta Chandra, J.

Hon'ble Manish Kumar, J.

Heard learned counsel for the petitioner and learned counsel appearing for the respondents no. 2 to 4.

Learned counsel for the respondents no. 2 to 4, on the basis of instructions received, says that at least four meters were installed one after the other in the premises of the petitioner and the arrears shown of electricity dues relate to earlier point of time when such meters were replaced by new ones.

This Court has perused the pleadings on record and finds that the petitioner is basically aggrieved by the arrears shown in his bills for which recovery proceedings have been initiated. He disputes such bills and arrears.

The petitioner has statutory remedy under Paragraph 6.5 of the Electricity Supply Code, 2005. He may make an application to the Executive Engineer of the Division concerned within a week from today. If such an application is made, the Executive Engineer shall decide the same within seven days under Paragraph 6.5 (b) of the Code.

For a period of two weeks or till the decision is taken by the Executive Engineer of the Division concerned on the application of the petitioner, the recovery proceedings initiated against the petitioner shall remain stayed.

The benefit of this order shall be available to the petitioner only if the petitioner complies with our order and files his application within a week from today before the Executive Engineer concerned.

The writ petition stands ***disposed of.***

Order Date :- 17.3.2023

Darpan Sharma